



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: County Pocket Annexation #3
Date: October 14, 2024

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral October 14, 2024
- Public Services Committee October 22, 2024
- Final consideration October 28, 2024

This annexation is comprised of 38 properties 100% surrounded by the City (See attached map). Of the 38 parcels, 28 are developed with residential uses, one is developed with a commercial use, one is developed with a church and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

On September 25, 2024, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Wednesday, October 9, 2024.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, October 14, 2024	Resolution certifying compliance introduction
Tuesday, October 22, 2024	Public Services Committee
Monday, October 28, 2024	Final consideration of resolution
Monday, November 4, 2024	Zoning consideration by Planning Commission
Tuesday, November 12, 2024	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Tuesday, November 19, 2024	Annexation and Zoning ordinances Public Services Committee
Monday, November 25, 2024	Annexation and Zoning ordinances Governing Body second reading
Tuesday, December 3, 2024	Annexation and Zoning ordinances Public Services Committee
Tuesday, December 9, 2024	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately December 13, 2024	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN NORTHEAST CHEYENNE GENERALLY LOCATED NORTH OF BEVANS STREET, WEST OF COLLEGE DRIVE, AND SOUTH OF DELL RANGE BOULEVARD."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for various tracts of land situate in northeast Cheyenne as shown in in Attachment A which is attached hereto and incorporated herein, and more particularly described as follows:

Area #1

PARCELS OF LAND SITUATE IN NW $\frac{1}{4}$ NW $\frac{1}{4}$, SECTION 27, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

Parcel #1 - SOUTH 320' OF THE NORTH 360' OF THE WEST 130' OF SAID SECTION 27

Parcel #2 - ALL OF LOTS 1-4, BLOCK 1, DARNELL HOMESITES.

Parcel #3 - ALL OF LOTS 1-4, BLOCK 2, DARNELL HOMESITES TOGETHER A THAT PORTION OF THE NW $\frac{1}{4}$ NW $\frac{1}{4}$, SECTION 27 LYING EAST OF RIDGE ROAD RIGHT-OF-WAY, SOUTH OF NORTHCREST, 2ND FILING, EAST OF NORTHCREST, 1ST FILING AND NORTH OF LOT 1, BLOCK 2, DARNELL HOMESITES. PARCEL DIMENSIONS ARE 200' EAST-WEST AND 320' NORTH-SOUTH.

SAID PARCELS CONTAIN 10.49 ACRES MORE OR LESS.

Area #2

PARCELS OF LAND SITUATE IN NW $\frac{1}{4}$ NW $\frac{1}{4}$, SECTION 27, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

PARCELS #4-5 - ALL OF THE SE $\frac{1}{4}$ NW $\frac{1}{4}$ NW $\frac{1}{4}$ OF SAID SECTION 27 - ALL OF THE SE $\frac{1}{4}$ NW $\frac{1}{4}$ NW $\frac{1}{4}$ OF SAID SECTION 27 EXCEPTING THEREFROM DRY CREEK PARKWAY, 2ND FILING.

SAID PARCELS CONTAIN 8.23 ACRES MORE OR LESS.

Area #3

PARCELS OF LAND SITUATE IN NW¼ NW¼, SECTION 27, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

PARCELS #6 - ALL OF LOTS 1-8, BLOCK 1, DOWNEY SUBDIVISION.
PARCELS #7 - ALL OF LOTS 9-10, BLOCK 1, DOWNEY SUBDIVISION.
PARCELS #8 - ALL OF LOTS 13-15, BLOCK 1, DOWNEY SUBDIVISION.
PARCELS #9 - ALL OF LOTS 7-8, BLOCK 2, DOWNEY SUBDIVISION.
PARCELS #10 - ALL OF LOTS 3-4, BLOCK 2, DOWNEY SUBDIVISION.

SAID PARCELS CONTAIN 3.37 ACRES MORE OR LESS.

Area #4

PARCELS OF LAND SITUATE IN SE¼ NW¼, SECTION 27, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

PARCELS #11 - ALL OF LOTS 5-9, BLOCK 1, COULSON ADDITION.

PARCELS #12 - THE WEST 60 FEET OF THE EAST 180 FEET OF THE SOUTH 120 FEET, TRACT 336, SUNNYSIDE ADDITION, 7TH FILING.

PARCELS #13 - THE EAST 60 FEET OF THE SOUTH 120 FEET, TRACT 336, SUNNYSIDE ADDITION, 7TH FILING TOGETHER WITH A PORTION OF TRACT 6, BLOCK 2, COULSON ADDITION DESCRIBED AS BEGINNING AT THE SOUTHWEST CORNER OF SAID LOT 6, THENCE 00°19'20" A DISTANCE OF 126.80 FEET; THENCE 90°26'01" A DISTANCE OF 39.74 FEET; THENCE 184°34'39" A DISTANCE OF 135.185 FEET; THENCE 270°28'12" A DISTANCE OF 29.71 FEET TO THE POINT OF BEGINNING.

PARCELS #14 - THE SOUTH 126.82 FEET OF LOT 1, BLOCK 1, RODGERS SUBDIVISION LYING SOUTH OF THE VACATED 16 FOOT ALLEY.

SAID PARCELS CONTAIN 1.62 ACRES MORE OR LESS.

Area #5

PARCELS OF LAND SITUATE IN NW¼ SW¼, SECTION 27, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

PARCELS #15 - THE NORTH 209.45 FEET OF TRACTS 201-204, SUNNYSIDE ADDITION, 6TH FILING EXCEPTING THEREFROM THE EAST 10.00 FEET

OF THE NORTH 209.45 OF TRACT 204, SUNNYSIDE ADDITION, 6TH FILING.

SAID PARCELS CONTAIN 2.96 ACRES MORE OR LESS.

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating annexation proceedings by cities and towns and requires that a resolution be adopted certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following criteria found in Wyoming Statute § 15-1-402(a):

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the City of Cheyenne;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;
- (v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and,
- (vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, an annexation report has been created by the City of Cheyenne, containing, at a minimum, the required information from Wyoming Statute § 15-1-402(c);

WHEREAS, The City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412, and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the land described above is compliant with Wyoming Statute §15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



Attachment A